

Date: 7/25/2024
 Customer: Brecksville
 Broadview Hts City
 School District
 Start Date: 8/1/2024
 Term: 1 Year



Licensing * Management * Monitoring * Remediation

	Qty	Total/Mo	Annual
Basic Monitoring – Stay Compliant			
EDR (per endpoint) - per device	550	\$2,658.15	\$31,897.80
Backup - per GB storage and workload (average)	1400	\$188.00	\$2,256.00
Phishing Awareness and Training - per user	550	\$550.00	\$6,600.00
Patch Management - per device	0	\$0.00	\$0.00
Infrastructure Security Monitoring – Best Practice			
Physical Servers	1	\$25.00	\$300.00
virtual Servers (Windows, Linux)	11	\$275.00	\$3,300.00
Virtual Environment Management	0	\$0.00	\$0.00
Switches	0	\$0.00	\$0.00
Routers	5	\$125.00	\$1,500.00
Firewalls (physical, virtual, or cloud)	0	\$0.00	\$0.00
email Server	0	\$0.00	\$0.00
Web Servers	0	\$0.00	\$0.00
Databases	0	\$0.00	\$0.00
Cloud Security Monitoring - plusCloud			
Azure	0	\$0.00	\$0.00
AWS	0	\$0.00	\$0.00
GCP	0	\$0.00	\$0.00
O365 and Google Security Monitoring			
Office365/GCP Full Stack monitoring - per user	0	\$0.00	\$0.00
Office365/GCP Email Content Security Monitoring - per mailbox	0	\$0.00	\$0.00
Office 365/GCP Full Stack Back Up Monitoring - per user	35	\$131.25	\$1,575.00
Web Security	0	\$0.00	\$0.00
Full Stack for Enterprise – Enterprise			
Disaster Recovery - per GB storage and workload (average)	1400	\$87.50	\$1,050.00
Anti-virus, Malware protection (one reporting console)	0	\$0.00	\$0.00
NDR (one reporting console) - per device	0	\$0.00	\$0.00
Workstation Monitoring - per workstation)	0	\$0.00	\$0.00
DLP monitoring - per user	0	\$0.00	\$0.00
MFA - per user	0	\$0.00	\$0.00
External Attack Surface - per domain, call for pricing	0	\$0.00	\$0.00
Real-time Continuous Vulnerability Scan - per device	0	\$0.00	\$0.00
Real-time Compliance Management - per device	0	\$0.00	\$0.00
IT Asset Discovery -per subnet	0	\$0.00	\$0.00
Automated Security Configuration Assessment - Per Device	0	\$0.00	\$0.00
SAN Storage (per device) - per device	0	\$0.00	\$0.00
Total		\$4,039.90	\$48,478.80

Total 1st Year

\$48,478.80

Terms and Conditions

This Statement of Work for a Security Consulting Engagement (this "SOW"), is entered into between EduTech Group and XeneX.

EduTech Group has engaged XeneX to perform a third-party security consulting engagement on behalf of their organization for the above client, defined as in the scope above. This engagement will be fully coordinated and scheduled with the appropriate EduTech Group contacts.

EduTech Group authorizes XeneX to perform the following tasks ("Services") for this engagement as described in this document.

1. EduTech Group Responsibilities

The following signed documents are required before the engagement kick-off:

This Signed Statement of Work (SOW)

EduTech Group's responsibilities and other requirements necessary for the successful completion of this effort:

- Contact information for client school.
- Access to appropriate materials and resources related to EduTech Group's client's technology – accurate network diagrams, system configuration documentation, security policies, and other related documentation.
- Suitable workspace in the form of office/cubes/lab to accommodate XeneX consultants (only if any on-premises work is required)
- Access to clients' infrastructure and systems as required.
- Building and facility access during normal business hours per the client's security standards
- Written authorization from EduTech Group to begin the onboarding and implementation of work on its behalf.

When providing XeneX with a list of their public-facing network spaces with which XeneX will be interacting, it is also EduTech Group's responsibility to ensure the list contains only network spaces that are fully owned and operated by their client's organization. EduTech Group must submit documentation to XeneX demonstrating this ownership before the work in this SOW will begin.

2. Travel Expenses/Other Costs

In addition to the professional fees set forth above, EduTech Group shall compensate XeneX for all travel-related expenses incurred by or on behalf of XeneX employees or consultants in order to perform the Services. These expenses may include, but are not limited to, airline flights, mileage, hotel, and food expenses. Payment/reimbursement for other pre-approved costs (e.g., third party software licenses) shall also be invoiced.

This project is delivered remotely. Thus, there are no travel expenses. If the EduTech Group requires XeneX personnel for any onsite work, then a Change Order must be approved and signed by the EduTech Group before any travel expenses are incurred.

3. Change Orders

In the process of a project, additional work, hardware, software, or other items, may need to be added because they were not accounted for in this SOW, or because EduTech Group makes changes based on his/her own desires or at the suggestion of XeneX.

XeneX will provide a Change Order for EduTech Group's review and signature before any additional items are added to the Statement of Work to be invoiced to EduTech Group.

A XeneX Change Order will specifically state the work, software, or other items to be added to the SOW to be invoiced. Included with the Change Order will be a brief explanation of the requirement and the additional service required to complete the change. Both the EduTech Group and XeneX will be required to sign the Change Order before EduTech Group can be invoiced.

4. Timeframe

This Statement of Work shall be effective upon receipt of a signed original SOW by an authorized EduTech Group representative. The services shall be scheduled to start at the time requested by EduTech Group, upon the receipt of the signed project documents listed in the EduTech Group Responsibilities section above.

5. Confidential Information

Statement of Purpose. This Statement of Work (SOW) is being executed in connection with certain business transactions the parties have agreed to enter and for such other purposes as the parties may agree in writing in the future.

Confidential Information. Each party understands and agrees that during its performance of the SOW, it may be furnished with or otherwise have access to information that the other party considers to be confidential, including but not limited to business and technical information, marketing plans, research, designs, plans, methods, techniques, processes, and know-how, whether tangible or intangible and whether or not stored, compiled or memorialized physically, electronically, graphically or in writing (the "Confidential Information"). Each party agrees to secure and protect the Confidential Information of the other in a manner consistent with the maintenance of the other party's rights therein, using at least as great a degree of care as it uses to maintain the confidentiality of its own confidential information of a similar nature or importance, but in no event use less than reasonable efforts. Neither party will sell, transfer, publish, disclose, or otherwise use or make available any portion of the Confidential Information of the other party to third parties, except to those of its directors, officers, employees, or attorneys who have a need-to-know the same, in furtherance of the purposes of the SOW and as expressly authorized by this statement. No license under any patent, trademark, copyright or any other intellectual property or proprietary rights laws is either granted or implied by the disclosure of any Confidential Information. Nothing in the SOW or this statement shall be deemed to obligate either party to disclose any Confidential Information to the other, or to accept any Confidential Information from the other.

Non-Confidential Information. Notwithstanding Sections 1-2 above, Confidential Information of a party shall not include information which: (a) is, as of the time of its disclosure or thereafter becomes part of the public domain through a source other than the receiving party; (b) was rightfully known to the receiving party as of the time of its disclosure; (c) is independently developed by the receiving party; (d) is subsequently learned without confidentiality obligations to the disclosing party attached thereto; or (e) is required to be disclosed pursuant to a duly authorized subpoena, court order, or government authority, whereupon the party subject to same shall provide prompt notice to the other party prior to such disclosure, so that such party may seek a protective order or other appropriate remedy, provided however, that the required party only comply to the extent required to respond to such authorized subpoena, court order, or government authority.

6. Ownership

The receiving party agrees that all Confidential Information of the disclosing party that comes into the receiving party's custody or possession is and always shall be the exclusive property of the disclosing party, to be used by the receiving party only for the purposes expressly contemplated by the SOW and this statement. At the request of the disclosing party, the receiving party shall promptly destroy all copies of such Confidential Information or return the same to the disclosing party, and shall, within thirty (30) days of receiving such a request, certify in writing its compliance with the terms of this provision. After such destruction or delivery, the receiving party shall not retain any copies thereof.

7. Consent to Access

By engaging XeneX to perform these Services, EduTech Group acknowledges that it has the authority to order or consent to and shall inform all proper parties to XeneX gaining access to its computers, systems, telecommunications devices, networks, facilities, and information by various means, including, but not limited to, network and application testing and exploitation, phishing, other covert activities, and/or violation of EduTech Group's security policies and procedures, and no such activities shall be considered unauthorized access or an attempt to gain unauthorized access for purposes of any applicable federal, state or local laws, whether civil or criminal, including but not limited to claims for violations of property trespass, breaking and entering, privacy laws and 18 USC 1030.

8. Sub-contractors

XeneX may subcontract any or all of the Services to be performed under this SOW provided, however, that XeneX will remain responsible for the performance of such subcontractors and their adherence to this SOW.

9. Hierarchy

The following order of precedence shall be applied in the event of conflict or inconsistency between provisions of the components of this engagement: (i) this SOW; (ii) the Project Plan; (iii) the Master. Thus, the SOW shall prevail over any conflict or inconsistency between the SOW and the Project Plan or the SOW and the Master; and the Project Plan shall prevail over any conflict or inconsistency between the Project Plan and the Master.

10. Disclaimer

EduTech Group acknowledges that the performance of Services by XeneX does not guarantee that EduTech Group will not experience a security incident, or a breach of data, systems, or facilities.

11. Proprietary Rights

All written or printed material, outlines, reproductions, specifications, drawings, sketches, models, samples, tools, computer software programs, screen formats and other visual effects, technical information, business information or other data provided by XeneX to the EduTech Group and any such information generated or derived therefrom by XeneX in the course of providing the Services shall be the exclusive property of XeneX. All rights, title, and interest in this information, design inventions, and other inventions made, conceived, or reduced to practice or authored by XeneX shall vest with XeneX upon creation. However, the deliverables as defined by this SOW are exclusively owned by the EduTech Group.

12. Limitation of Liability

Except with respect to XeneX's breach of XeneX' intellectual property rights or either party's breach of its obligations regarding confidentiality, and excluding a party's obligation of indemnification hereunder, (a) neither party will be liable for special, incidental, consequential or indirect damages (including but not limited to lost profits, lost savings, costs of procurement of substitute goods and services, loss of use of computer hardware, downtime, loss of goodwill, loss of business, computer hardware malfunction, or damages arising from loss of use or loss of content or data) arising from the performance of this Agreement, whether such damages are based in contract, tort or any other legal theory, even if such party has been advised of the possibility of such damages, and (b) in no event will a party's total aggregate liability to the other under any provision of this Agreement exceed the total amounts paid by EduTech Group to XeneX or 6 months of the subscription fees whichever is less. The limitations of liability set forth herein also apply to XeneX' Suppliers and is the maximum for which XeneX and its Suppliers are collectively responsible. In no event will the limitations set forth in this Section apply to fees owed by XeneX under this Agreement. In no event shall either party hereto be liable to the other for the payment of any consequential damages.

13. Warranty Disclaimer

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, THE SERVICES ARE PROVIDED BY XENEX ON AN "AS IS" BASIS. XENEX MAKES NO OTHER WARRANTIES OR REPRESENTATIONS OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, AND SPECIFICALLY DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS OR IMPLIED, INCLUDING ANY WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR USE OR PURPOSE, AND NON- INFRINGEMENT OF THIRD PARTY RIGHTS, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW. THIS DISCLAIMER ALSO APPLIES TO ANY OF XENEX' INDEPENDENT CONTRACTORS, SUPPLIERS OR PROGRAM DEVELOPERS (COLLECTIVELY, "SUPPLIERS").

14. Fees:

This is a 12-month subscription for

\$48,478.80

Start Date of and Subscription End Date of **7/31/2025**

Client Signature:

Date: